



Title register for:

**Land lying on the North East side of Leckwith Road, Llandough
(Freehold)**

WA735527

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Register summary

Title number	WA735527
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Registered owners	FOREST OF CARDIFF The Wales Conservative Centre, Forest Farm Road, Whitchurch, Cardiff, CF4 7JH
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Last sold for	No price recorded
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A: Property Register

This register describes the land and estates comprised in this title.

Entry number	Entry date
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1	THE VALE OF GLAMORGAN BRO MORGANNWG
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The Freehold land shown edged with red on the plan of the above Title filed at the Registry and being Land lying on the North East side of Leckwith Road, Llandough.

2 The Conveyance dated 23 May 1975 referred to in the Charges Register contains the following declaration:-

"IT IS HEREBY DECLARED that all main or boundary walls or fences (if any) between the premises hereinbefore conveyed and any other lands which are now party walls or party fences shall continue to be such and shall be so used repaired and maintained."

3 The land has the benefit of the following rights reserved by a Transfer of land adjoining the Southern boundary of the land in this title dated 10 October 1989 made between (1) B P Properties Limited and (2) Howard John Gough and Sylvia Mary Gough:-

"Excepted and Reserved out of the land hereby transferred unto the Transferor and its successors in title the owners and tenants for the time being of the remainder of the land comprised in the title above mentioned (hereinafter called "the Retained Land") and of any part or parts thereof or other the person or persons in title thereto the right to the free passage of water soil electricity gas and other services through and along the channels drains sewers pipes cables and watercourses if any now situate in the land hereby transferred Together with the full right and liberty at all reasonable times by prior appointment (save in the case of emergency) to enter on the land hereby transferred with or without workmen for the purposes of inspecting repairing cleansing maintaining or renewing the said channels drains sewers pipes cables and

watercourses and making good all damage caused thereby".

NOTE: The land in this title forms part of the retained land referred to.

4	2005-12-22	The land edged and numbered in green on the title plan has been removed from this title and registered under the title number or numbers shown in green on the said plan.
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B: Proprietorship Register

This register specifies the class of title and identifies the owner. It contains any entries that affect the right of disposal.

Class of Title: Title absolute

Entry number	Entry date	
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1	1994-11-25	PROPRIETOR: FOREST OF CARDIFF (Co. Regn. No. 2591796) of The Wales Conservative Centre, Forest Farm Road, Whitchurch, Cardiff, CF4 7JH.
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2		RESTRICTION: Except under an order of the registrar no disposition or dealing by the proprietor of the land is to be registered unless the instrument giving effect to it contains a certificate complying with section 37(2) or, in the case of a charge, with section 39(2) of the Charities Act 1993.
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C: Charges Register

This register contains any charges and other matters that affect the land.

Class of Title: Title absolute

Entry number	Entry date	
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1 The land tinted pink on the filed plan is subject to the rights contained in a Conveyance dated 23 February 1905 made between (1) John Marquis of Bute and Earl of Dumfries and (2) Cardiff City Corporation.

NOTE 1: No copies of the plans referred to were supplied on first registration

¬NOTE 2: Copy filed under WA231076.

2 An Agreement dated 15 May 1924 made between
(1) John Marquis of Bute and Earl of Dumfries
and (2) James Pelham Stuart Corbett relates to
the construction and maintenance of a drain.

¬NOTE: Copy filed under WA231076.

3 The land tinted pink on the filed plan is subject to the rights contained in a Deed dated 29 March 1961 made between (1) Western Ground Rents Limited (2) The South Western Brick & Tile Company Limited and (3) Cardiff City Corporation.

¬NOTE: Copy filed under WA231076.

4 A Conveyance of the land tinted blue on the filed plan and other land dated 23 May 1975 made between (1) The British Petroleum Pension Trust Limited (Vendors) (2) BP Trustees Limited and (3) B.P. Properties Limited (Purchaser) contains covenants details of which are set out in the schedule of restrictive covenants hereto.

5 The land tinted blue on the filed plan is subject to the following rights excepted and reserved by the Conveyance dated 23 May 1975 referred to above:

"(i) The Conveyance hereby made does not include the Vendors HEREBY EXCEPT any liberties privileges easements rights or advantages whatsoever over any lands of the Vendors or their assigns.

(ii) Without prejudice to the generality of sub-clause (i) of this Clause there are excepted and reserved out of the Conveyance made to the Vendors and their assigns FIRSTLY the right and liberty at any time hereafter to erect and maintain on any lands of the Vendors or their assigns adjoining adjacent to or in the neighbourhood of the premises hereby conveyed any buildings or other erections of such height or extent as the Vendors or their assigns may think fit notwithstanding that the access of light and air over such adjoining premises to any window or other opening in any building now or at any time hereafter standing on the premises hereby conveyed made by any such building or erection so erected be wholly or partially obstructed prejudiced reduced or interfered with (it being the intent and meaning of the parties to these presents that such access of light and air however long and under whatever circumstances the same may have been or may be enjoyed shall be deemed to have been enjoyed by the temporary and revocable licence only of the Vendors or their assigns and not by virtue of any grant of prescription) AND SECONDLY the access of light and air over the premises hereby conveyed to the existing windows or other openings in all buildings now upon any land of the Vendors adjoining adjacent to or in the neighbourhood of the premises hereby conveyed to the same extent and in like manner as if such premises and the premises hereby conveyed had not at any time during the period of twenty years now last past been subject to any common ownership or common occupation and such

access had been during that period enjoyed as if right without interruption.

4. THERE is excepted and reserved in fee simple to the Vendors and their successors in title the owners and occupiers for the time being of all or any part of the Vendors' adjoining land (hereinafter called "the Retained Land") more particularly shown edged blue on the plan annexed hereto and their respective servants and licensees the several easements and reservations more particularly specified in the Third Schedule hereto:

THE THIRD SCHEDULE

(i) The right at all times to enter the land hereby conveyed in order to construct lay down connect alter repair renew clean and maintain such sewers drains watercourses cesspools gutters water pipes gas pipes electric wires or cables and all other necessary conduits as shall be required to serve any development of the Retained Land (hereinafter called "the Service Works") PROVIDED however that the Service Works shall be constructed in accordance with such plans and specifications as shall be approved by the Local Planning Authority for the time being of the Retained Land, the Vendors making good all damage occasioned thereby.

(ii) The right at all times to enter the land hereby conveyed in order to construct and thereafter maintain upon the land hereby conveyed such roads and footpaths (with all appurtenant services thereto) as shall be required to serve any development of the Retained Land PROVIDED howsoever that such roads and footpaths and other appurtenant services shall be constructed in accordance with such plans and specifications as shall be approved by the Local Planning Authority

for the time being of the Retained Land, the Vendors making good all damage occasioned thereby.

(iii) The free and unimpeded passage and running of water soil electricity gas and all other services through the sewers pipes wires cables conduits drains and watercourses which are now or may within a period of eighty years from the date hereof be constructed as aforesaid in over or under the land hereby conveyed with all easements rights and privileges proper for connecting into the same and thereafter repairing maintaining and reinstating the same the Vendors making good all damage or disturbance occasioned thereby.

(iv) The right at all times and for all reasonable purposes to pass and repass over and along the roads and footpaths which may within a period of eighty years from the date hereof be constructed as aforesaid in or on the land hereby conveyed with all easements rights and privileges proper for connecting the Retained Land and each and every part thereof to the same the Vendors making good all damage occasioned thereby".

¬NOTE: Copy plan filed under WA240304.

6

A Conveyance of the land tinted pink on the filed plan and other land dated 19 November 1982 made between (1) The British Petroleum Pension Trust Limited (2) B.P.Trustees Limited and (3) B.P. Properties Limited contains restrictive covenants.

¬NOTE: Original filed under WA231076

7

The land tinted pink on the filed plan is subject to the rights excepted and reserved by the Conveyance dated 19 November 1982 referred to

above.

8		A Transfer of the land in this title dated 10 November 1994 made between (1) Ideal Homes Wales Limited (Transferor) and (2) Forest of Cardiff (Transferee) contains covenants details of which are set out in the schedule of restrictive covenants hereto.
9	2005-12-22	A Transfer of the land edged and numbered CYM265133 in green on the title plan dated 2 December 2005 made between (1) Forest of Cardiff and (2) Goldsworthy Homes Limited contains restrictive conditions by the Transferor. ¬NOTE: Copy filed under CYM265133.
10	2005-12-22	The land is subject to the rights granted by the Transfer dated 2 December 2005 referred to above.
11		The following is a copy of the covenants contained in the Conveyance dated 23 May 1975 referred to in the Charges Register. "FOR the benefit of the property of the Vendors situate within a radius of one hundred yards measured from the nearest part of the premises hereby conveyed and every part thereof the Purchaser HEREBY COVENANTS with the Vendors and their assigns that the Purchaser and the persons deriving title under him will not use or occupy nor permit or suffer to be used or occupied the said premises hereby conveyed or any building or structure thereon or any part thereof for any noisy noxious or offensive trade business or occupation shop warehouse or other place for carrying on any trade or business whatsoever or any place of public entertainment or instruction or of public worship or as a lunatic

asylum or for a public house inn tavern or beer-shop or otherwise for the sale of wine malt liquors or spirituous liquors or for the purpose of displaying any advertisement or in such manner as to cause damage to any other lands or buildings within the said radius and shall not nor will erect or permit or suffer to be erected any building or make any addition to or alteration of any building on the premises hereby conveyed except such as are of as good a class and description as the buildings on the adjoining adjacent or neighbouring land and shall not nor will erect or permit or suffer to be erected any building or addition or alteration to any building for the time being on the premises hereby conveyed which will cause damage to any other premises And will if so required by the Vendors (in writing so to do construct and thereafter maintain a sufficient and suitable fence or wall to the satisfaction of the Vendors in every respect around the said premises hereby conveyed Provided that nothing herein contained shall impose any restriction whatsoever upon the use of any property other than the premises hereby conveyed or restrain the releases or modification at any time by the Vendors of any restrictive stipulations affecting any such property or to be taken to be evidence of a building scheme".

NOTE: The Vendors property lies to the north and west of the land in this title.

The following are details of the covenants contained in the Transfer dated 10 November 1994 referred to in the Charges Register:-

"The Transferee hereby covenants with the Transferor so as to benefit the remainder of the land comprised in title above mentioned or any part or parts thereof and so far as to bind the land hereby transferred into whosoever hands the

same may come so as to render the transferee personally liable in damages for any breach of a restrictive covenant after it shall have parted with all interest in the land hereby transferred as follows:

Not to erect or retain or permit the erection or retention of any building or structure on land hereby transferred but so that this restriction shall not prohibit structures used for the purpose of enjoyment of the land as natural woodland (such as bird hides, tool sheds or informal shelters)."